

The introduction and spread of marine species into and around Australian waters through biofouling, or in a ship's [ballast water](#), can harm fisheries, threaten healthy fish habitats and have widespread economic and health effects.

[Marine pest biosecurity](#) is an important part of the department's responsibilities. In particular, we focus on:

- reducing the likelihood of the entry and establishment of exotic marine pests through policy and legislation
- responding to marine pest incursions and manage established marine pests, in cooperation with state and territory governments and industry stakeholders
- representing Australia's interests in establishing international guidelines and conventions for marine pests.

The petroleum production and exploration industry also has an important role in Australia's fight against marine pests.

This page provides information about marine pest biosecurity and will assist you to develop an Environmental Management Plan.

If you are an operator of a vessel, immersible equipment or infrastructure involved in petroleum production and exploration operations, you can help prevent the spread of marine pests by implementing the following measures:

- managing ballast water according to Australia's mandatory [Ballast Water Management Requirements](#).
- Minimise biofouling through proactive anti-fouling, treatment and maintenance practices consistent with the [Anti-fouling and in-water cleaning guidelines](#).

Further information on recommended [biofouling management practices for petroleum vessels, equipment and infrastructure](#), is found on the [Marine pest website](#).

The [Biosecurity Act 2015](#) and other related delegated legislation, collectively prescribe how ballast water should be managed within Australian seas.

The [Australian Ballast Water Management Requirements](#) explain how to comply with the legislation while operating a vessel in Australian waters. In general, vessels have the following obligations:

- manage ballast water prior to arrival in Australian seas, and between Australian ports
- carry a ballast water management plan, ballast water management certificate, and maintain ballast water records.

Some vessels may be required to install an International Maritime Organization (IMO) approved ballast water management system to meet new ballast water discharge standards. For more information on when a vessel will need to meet the discharge standard, please refer to the [Australian Ballast Water Management Requirements](#).

Exemptions available for some vessels

Vessels may be eligible for [exemptions](#) from some or all of Australia's ballast water requirements. For further information on exemptions, please refer to the [Ballast Water web page](#).

Biofouling occurs when microorganisms, algae, plants and animals stick to submerged surfaces on vessels. Biofouling is a problem because these organisms can be transported and establish outside their natural range with potentially significant negative economic and environmental impacts. Vessel movements between offshore installations and Australian ports have the potential to transfer marine pests.

You can reduce this risk by preventing the build-up of biofouling of your vessel through routine cleaning and maintenance.

To assist you, see the [National biofouling management guidance for the petroleum production and exploration industry](#). This page provides practical recommendations for operators on managing biofouling on petroleum related vessels, equipment and infrastructure.

The [Anti-fouling and in-water cleaning guidelines](#) provide information on how to:

- apply, maintain, remove and dispose of anti-fouling coatings
- manage biofouling
- manage invasive aquatic species on vessels and movable structures.

Additional information on managing biofouling can be found on the [Marine pest website](#).

The department is currently assessing the impact new biofouling standards would have on operators with a view to establishing a clear framework that operators can use to manage the risks associated with biofouling on vessels. We will consult our stakeholders on the development of biofouling regulations during 2018.

While that work is completed, the department is assessing vessels suspected to have an unacceptable level of biofouling on a case by case basis.

We can help by providing advice on the potential risk of biofouling on your vessel. To obtain advice relating to your situation, email [Pests marine](#). When assessing the risks, we will take into consideration factors such as:

- presence and age of anti-fouling systems and technologies to address niche area fouling such as marine growth prevention systems
- record keeping such as a biofouling management plan and record/log book
- previous itineraries before visiting Australia including layover times.

The [Anti-fouling and in-water cleaning guidelines](#) provide best practice approaches to applying, maintaining, removing and disposing of anti-fouling coatings and managing biofouling and invasive aquatic species on vessels and movable structures in Australia and New Zealand.

These guidelines are applicable to all vessels and movable structures in Australian aquatic environments (marine, estuarine and freshwater), regardless of whether they have an anti-fouling coating. They are recommended for use by:

- resource managers
- owners and operators of vessels and movable structures
- operators and customers of maintenance facilities
- contractors providing vessel maintenance services.

The department should be consulted if an offshore activity has the potential to either:

- introduce or spread marine pests and associated diseases (marine biosecurity risk) into Australian waters, or
- impact fisheries in Commonwealth waters. Guidance on what is required when engaging with the department on issues related to fisheries is located on the under [fisheries and the environment](#) on the departments website. The relevant area of the department is also contactable at [Petroleum & Fisheries](#).

Under National Offshore Petroleum Safety and Environmental Management Authority (NOPSEMA) legislation proponents and titleholders should consult with the department when preparing an Offshore Project Proposal or an Environment Plan. The NOPSEMA administers the Offshore Petroleum and Greenhouse Gas Storage Act 2009 (OPGGSA) and associated delegated legislation including the Offshore Petroleum and Greenhouse Gas Storage (Environment) Regulations 2009 (Environment Regulations).

Consultation for Marine pest biosecurity

Marine pests can have a serious effect on the environment. Management of marine pest risks need to be considered when planning any offshore activity.

Marine pests, also known as invasive marine species (IMS), can be transported through ballast water and sediments, and biofouling. The Department of Agriculture (department) administers the Biosecurity Act 2015 (Cth)(Biosecurity Act) to manage the biosecurity risks of ballast water and biofouling from vessels operating in Australian seas.

Consultation for Offshore Project Proposals (OPPs)

In preparing an OPP please ensure that you take into account your biosecurity obligations, including ballast water and biofouling requirements under the Biosecurity Act and under the International Maritime Organisation (IMO). This includes the:

- [Australian Ballast Water Management Requirements](#)
- [Australian Biofouling Management Guidelines](#)
- IMO Biofouling Guidelines

The department does not need to be consulted on each OPP but can be contacted at [Marine Pests](#) if you have any specific questions on marine biosecurity.

Consultation for an Environment Plan

The department are relevant persons under Environment Regulation 11A(1)(a) when a petroleum activity has the potential to introduce or spread marine pests and diseases into Australian waters. The department should be consulted by titleholders prior to the public comment phase of an environment plan (EP) to ensure titleholders are planning to meet biofouling requirements and manage ballast water appropriately.

The Environment Regulations provide a framework for environmental management and regulation of offshore petroleum and greenhouse gas activities. Under this framework an EP is required to be assessed and accepted by NOPSEMA prior to any petroleum or greenhouse gas activity commencing in Commonwealth waters.

As part of an EP submission, the Environment Regulations require that titleholders must demonstrate that they have consulted with 'relevant persons'. Titleholders are also required to assess the merits of any objection or claim about the activities made by 'relevant persons' and include copies of full text responses in the EP.

Information required for EP consultation

As specified in Environment Regulation 11A(2): For the purpose of the consultation, the operator must give each relevant person sufficient information to allow the relevant person to make an informed assessment of the possible consequences of the activity on the functions, interests or activities of the relevant person.

The department considers the information listed below to be sufficient information.

- Titleholder details
- Proposed dates the activity is being undertaken
- Map of area the activity is being undertaken
- Type of activity being undertaken
- Types of vessels that will be servicing the offshore installation and their origin and destination (domestic or international movements).
- A description of the marine environment that may be affected by planned aspects of the activity. This may include information of water depth, the surrounding marine habitat (reef, sandy, rocky), and proximity to island or shoals.
- Details and an evaluation of the environmental impacts including the risks of introducing/spreading an IMS into Australian waters. The titleholder must identify the risks relevant to marine pest biosecurity branch of the departments, and propose appropriate control measures prior to consultation. If the risk is uncertain or unknown the titleholder must identify perceived risks or specific sections of the EP that they wish to enquire about.
- A demonstrated understanding of how Australia's ballast water and biofouling requirements apply to the facility and/or vessel(s).

- Details of the control measures that will be in place to reduce the risk of introducing or spreading marine pests. Control measures should represent best practice, and includes, but is not limited to, vessel ballast water management plans and certificates (in line with the [Australian Ballast Water Management Requirements](#)), and biofouling management plans (in line with the IMO biofouling guidelines and [Australian biofouling management guidelines](#)).

Please note it is not acceptable to attach an entire EP for review by the department. This will not be considered as genuine consultation.

Consultation timeframes

Under Environment Regulation 11A(3) the Operator must allow a relevant person a reasonable period of time for consultation. For the purposes of consultation with the department on marine biosecurity, 10 business days is considered a reasonable period for an initial response. Should further review and feedback be required appropriate timeframes will be discussed.

If required the department will provide written advice to the proponent or titleholder relating to potential impacts on Australia's marine biosecurity. If there has been no response from the department, it can be assumed we have no comments on the plan.

Further information

It is recommended that the proponent or titleholder review and use the [Department of Agriculture Offshore Installations - Biosecurity Guide](#). There is also further information about [biosecurity concerns and requirements for offshore vessels](#) on the department's website.

The marine biosecurity area of the department is contactable at [Marine Pests](#).

We are working with other regulators and industry to develop a Standard to make marine biosecurity requirements clearer and more consistent across jurisdictions for organisations and vessels operating in the offshore petroleum sector. If you would like to contribute to developing the standard, email [Pests marine](#).

Further updates will be provided as the Standard develops.

For enquiries about marine pest biosecurity, email [Pests marine](#)

For enquiries about aircraft or vessel interactions with offshore petroleum activities, email [Conveyance Maritime](#)

To assist us in answering your query, please provide us with your preferred contact details and any other relevant information.

Related government agencies

National Offshore Petroleum Safety and Environmental Management Authority Australian Maritime Safety Authority Department of the Environment and Energy Australian Fisheries Management Authority

Source: <https://www.agriculture.gov.au/biosecurity-trade/aircraft-vessels-military/vessels/marine-pest-biosecurity>